Procedure of Amendment:

The Indian Constitution is a combination of rigidity and flexibility. It has neither the rigidity of the American Constitution nor the flexibility of the British Constitution. Three different methods of amendment have been provided under the Indian Constitution.

First, certain provisions of the constitution can be amended by Parliament by ordinary legislation. For example, Parliament may, by ordinary law (i.e., a law passed by a simple majority) form a new State out of the existing States, increase or decrease the area of any state, alter the name of any State, etc. Again, for abolition or creation of Legislative Councils in States, Parliament may, by ordinary law, provide for this, provided the Legislative Assembly of the State concerned passes a resolution to that effect by a majority of the total membership and at least a two-thirds majority of the members present and voting before Parliament undertakes to pass such a law.

Secondly, certain specified provisions can be amended by a special procedure.

(b) In case of the aforesaid order having been made any of the following persons shall be required to preserve and produce all the books, registers, other documents and records of and relating to the company/intermediary/other person being in its custody or power: (i) every manager, managing director, officer and other employee of the company ; (ii) every intermediary referred to in Section 12; (iii) every person associated with the securities market. The Investigating Authority may also examine any of the aforesaid persons on oath. Further, Investigating Authority may also examine any of the aforesaid persons on oath.

Further, investigating Authority may call for information, books, registers or other documents and records which it considers relevant and necessary for the purpose of its investigation. It may keep the records produced before it in its custody upto 6 months. It may issue certified copies of those documents for use of the person on whose behalf the books and documents have been kept. In case any person referred to above refuses to or fails to furnish the desired books/records/information or refuses or fails to appear or sign the notes of any examination, he shall be punishable with imprisonment for a term which may extend to one year, or with fine, which may extend to one crore rupees, or with both, and also with a further fine which may extend to five lakh rupees for every day after the first during which the failure or refusal continues.

Investigating Authority has also been empowered to secure an order for seizure of books, registers, other documents and record by making an application to the Judicial Magistrate. Such an application can be made where in the course of investigation, the Investigating Authority has reasonable ground to believe that the books, registers, other documents and records of, or relating to, any intermediary or any person associated with securities market in any manner, may be destroyed, mutilated, altered, falsified or secreted.

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